# WARRANTY ATLAS · Kansas (KS)

Law last amended: 2019 (eff. 2019-07-01) · Next scheduled change: none found · Last verified: 2026-10-06 · Built 2026-10-23

Cites: K.S.A. 8-2415; K.S.A. 8-2411; K.S.A. 8-2410(a)(4); K.S.A. 8-2413

## Labor reimbursement by coverage type

| Coverage | Status | Paid hours | Pinpoint / date note |
|---|---|---|---|
| **Factory warranty** | **Required** | Statute silent on time / not established | 8-2415(c)(3) |
| **Mfr-backed service contract** | **Not addressed** | - | 8-2415(c)(1)(B) |
| **CPO warranty** | **Not addressed** | - | 8-2415(a) |
| **Independent service contract** | **Not addressed** | - | 8-2415(a) |

Hourly rate: Not less than rates charged to retail customers for like services, provided they are reasonable. The manufacturer 'may' compute the retail labor rate as retail labor sales for warranty-like services ÷ hours, from 100 sequential customer-paid ROs or all ROs in 90 days, whichever is less, within 180 days, excluding routine maintenance such as tire or oil service. Effective 45 days after approval. A denial goes to a hearing before the director of vehicles, with the burden on th…

## Audit fields

| Field | Rule | Pinpoint |
|---|---|---|
| **Claim decision** | 30 days; late claim deemed approved: Yes. Specific disapproval in writing or by electronic transmission within 30 days. No unreasonable proof may be required. A reasonably substantiated claim may not be divided or reduced. Failure to follow processing requirements is not grounds for denial or reducti… | K.S.A. 8-2415(e) |
| **Payment** | 30 days after approval. Dealer filing deadline: Compensation may not be reduced or disallowed because the claim was submitted fewer than 60 days after the work was completed (8-2415(d)); no maximum stated. | |
| **Chargebacks** | 12 months; fraud: With evidence of fraud, the mfr may audit for longer and charge back…. Chargeback only for false or unsubstantiated claims. The mfr's reimbursement claim must be presented within 90 days of the audit. No setoff against dealer funds until a final decision on any challenge or appeal | K.S.A. 8-2415(e) |
| **Rate resubmission** | Once in any one-year period. Sample: 100 ROs or 90 days (fewer of the two samples); ROs <= 180 days old. Excluded: Routine maintenance, Tires. | K.S.A. 8-2415(c)(2)(C)(i) |
| **Mfr response** | Silent; no response = approved: no rule in statute. Challenge: At the hearing the mfr bears the burden of proving its denial was reasonable. The floor applies 'provided the rates are reasonable' (8-2415(c)(3)). The mfr may not act unreasonably to delay rate adjustments (8-2415(d)) Forum: Complaint to the director of vehicles; hearing under K.S.A. 8-2411 (K…. | K.S.A. 8-2415(c)(2)(C)(ii) |
| **Penalties** | Injunction on application of the board, the director or 'any person having any interest in the subject matter' (8-2413(a)); mandatory nonbinding mediation on request, which tolls deadlines (8-2413(b)). No express damages action in these sections Civil penalty of $50-$1,000 per violation and/or license suspension or revocation (8-2411(b… | K.S.A. 8-2410(a)(4), 8-2411(b), 8-2413 |
| **Audit procedures** | Audit climate score 45/100 (High restrictiveness; chargeback limits 42/75 + process and oversight 3/25; measures how strict the law is, not how likely a dispute is; weights in draft). Advance notice: no; selection basis disclosed: no; frequency cap: none; written reasons: no; response period: none; internal appeal: no; held pending appeal: yes; extrapolation: silent; clerical-error protection: yes; rate validation: limited to the submission. | |

## Statute quotes

***Claims*** *(K.S.A. 8-2415(e)): "If a claim is not specifically disapproved in writing or by electronic transmission within 30 days after … receives it, the claim shall be considered to be approved and payment shall follow within 30 days."*
***Chargebacks*** *(K.S.A. 8-2415(e)): "retains the right to audit claims for warranty work for a period of one year after the date on which the claim is paid and to chargeback any amounts paid on claims that are false or unsubstantiated."*
***Rate*** *(K.S.A. 8-2415(c)(2)(C)(i)): "copies of 100 sequential retail service orders paid by the dealer's customers, or all of the dealer's retail service orders paid by the dealer's customers in a 90-day period, whichever is less, for services provided within the previous 180-day period."*
***Factory time*** *(8-2415(c)(3)): "The compensation to the dealer for warranty parts and labor shall not be less than the rates charged by the dealer for like parts and services to retail customers, provided the rates are reasonable."*

## Notes

Applies to 'first or second stage' manufacturers and distributors. No time-allowance sentence, unlike Iowa. Rate and parts rules mirror Iowa § 322A.5(2), but the Kansas chargeback window runs from payment.

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